

24NWCV04110 24NWCV04110

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Case Number: 24NWCV04110 Hearing Date: August 18, 2026 Dept: L

Defendant General Motors,
LLC's Motion for Summary Judgment is GRANTED.

Defendant to give notice.

Background

This is a lemon law action regarding a 2019 Chevrolet Silverado ("Subject Vehicle"). On October 29, 2024, Plaintiff Oscar O. Rojas ("Plaintiff") filed this action against Defendant General Motors, LLC ("Defendant") and Does 1 to 20. The Complaint alleges the following causes of action: 1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act, 2) Breach of Express Warranty under the Song-Beverly Warranty Act, 3) Breach of Express Warranty under the Magnuson-Moss Warranty Act, and 4) Breach of Implied Warranty of Merchantability under the Magnuson-Moss Warranty Act.

On December 2, 2024, Defendant filed the Answer.

Defendant now moves for summary judgment as to all causes of action in the Complaint.

This hearing was continued from May 21, 2026 to today's date on the Court's own Motion. (5/21/26 Minute Order.)

Evidentiary Objections

Plaintiff's evidentiary

objections to the Declaration of Bryan Jensen are overruled as to Nos. 1 to 5.

The Court notes that Plaintiff attempts

to object to evidence contained in the Declaration of Kyle Roybal in his Separate Statement. Such objections are improper. Evidentiary objections must be "must be served and filed separately from the other papers in support of or in opposition to the motion" pursuant to California Rules of Court, Rule 3.1354(b).

Legal Standard

The function of a motion for

summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a

defendant has met its "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a moving party has satisfied

the initial burden of proof, the burden "shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist." (*Ostayan v. Serrano Reconveyance Co.* (2000) 77

Cal.App.4th 1411, 1418, disapproved on other grounds by *Black Sky Cap., LLC v. Cobb* (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Discussion

First and Second Causes of Action – Claims under Song-Beverly

Consumer Warranty Act

The first and second causes of action are based on a breach of implied warranty of merchantability and on a breach of express warranty under the Song-Beverly Consumer Warranty Act (SBA), respectively.

Defendant argues that it is entitled to summary judgment as to the second cause of action because the Subject Vehicle is not a “new motor vehicle” under the SBA, citing *Rodriguez v. FCA US, LLC* (“*Rodriguez*”) (2024) 17 Cal.5th 189. Defendant provides evidence that 1) on July 24, 2021, Plaintiff purchased the Subject Vehicle used from STG Auto Group with 20,785 miles on it (Roybal Decl., ¶ 3, Exh. A), and 2) Defendant did not issue any new or additional warranty to Plaintiff when he bought the Subject Vehicle from the dealership (i.e., Plaintiff received only the balance of coverages under the warranty that Defendant issued to the original owners) (Jensen Decl., ¶¶ 7-8, Exhs. C-D). The new warranty’s coverage began on August 24, 2019, when the vehicle was delivered to its original owners. (Jensen Decl. ¶ 6, Exh. B.)

As to the first cause of action, Defendant argues that only distributors or sellers of used goods, not manufacturers, are liable for breach of implied warranties under the SBA, citing *Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399.

In opposition, Plaintiff argues that Defendant improperly relies on *Rodriguez*, which cannot be applied retroactively. At the time Plaintiff purchased the Subject Vehicle and later filed this Complaint, *Jensen v. BMW of North America, Inc.* (“*Jensen*”)

(1995) 35 Cal.App.4th 112 was the pertinent caselaw in effect. Jensen stood for the proposition that used vehicles sold with a remainder of warranty constitute “new motor vehicles” under Section 1793.22(e)(2) of the SBA. (See *id.* at p. 123.)

In reply, Defendant argues that Plaintiff cites no caselaw supporting his assertion that the Rodriguez case should not apply retroactively. Judicial interpretations of statutes apply retroactively.

The Court clarifies that

“[a] judicial construction of a statute is an authoritative statement of what the statute meant before as well as after the decision of the case giving rise to that construction.” (Vazquez v. Jan-Pro Franchising Intern., Inc. (2021) 10 Cal.5th 944, 951, citing Rivers v. Roadway Express, Inc. (1994) 511 U.S. 298, 312–313; see also Woosley v. State of California (1992) 3 Cal.4th 758, 794 [“‘Whenever a decision undertakes to vindicate the original meaning of an enactment, putting into effect the policy intended from its inception, retroactive application is essential to accomplish that aim.’ [Citation.]”].)

Because the Rodriguez decision interpreted the meaning of “new motor vehicles” under the SBA, the Court finds that the case applies retroactively and is binding on this Court. The Rodriguez case states the following rule: “A motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under Civ. Code, § 1793.22, subd. (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Rodriguez, *supra*, 17 Cal.5th at p. 196.) “For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Id.* at p. 202.)

Here, Plaintiff provides no evidence disputing Defendant’s evidence that 1) he purchased the Subject Vehicle from STG Auto Group with 20,785 miles on it (Roybal Decl., ¶ 3, Exh. A), and 2) Defendant issued a new vehicle warranty to the original owner but

did not provide new or additional warranty coverage to Plaintiff when Plaintiff purchased the Subject Vehicle used (Jensen Decl., ¶¶ 7-8, Exhs. C-D). Plaintiff only attempts to dispute such facts by arguing that witnesses have not properly authenticated the evidence. (See Plaintiff's Sep. Statement.) However, as noted by Defendant in reply, Mr. Jensen declares that he regularly reviews "warranty information and warranty claims concerning GM vehicles, including the Warranty Booklet with the terms of GM's New Vehicle Limited Warranty issued for particular vehicles, as well as GM's [...] 'View Vehicle Summary' reports, which contain information about a particular vehicle's original delivery date, its warranty terms, and warranty repairs performed." (Jensen Decl. ¶ 3.) As to the Retail Installment Sale Contract, dated July 24, 2021 (Exhibit A), provided in the Declaration of Kyle Roybal, Mr. Roybal declares that the document was produced by Plaintiff. The Court finds that such evidence is properly authenticated, as indicated in the Court's denial of Plaintiff's evidentiary objections.

As to the breach of implied warranty of merchantability claim, the Court finds that Defendant is entitled to summary judgment based on the same evidence. "[O]nly distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods." (Nunez v. FCA US LLC ("Nunez") (2021) 61 Cal.App.5th 385, 399 [analyzing Civil Code section § 1795.5]; see also Rodriguez, supra, 17 Cal.5th at p. 202.) The undisputed facts show that 1) Defendant was not the distributor or retail seller of plaintiff's used vehicle, and 2) Defendant did not issue a new warranty for used Subject Vehicle. Plaintiff does not address the Nunez case in the opposition.

Accordingly, the Court finds that Defendant has met its burden and Plaintiff has failed to establish that a triable issue of material fact exists as to the first and second causes of action.

Third and Fourth Causes of Action – Claims under the Magnuson-Moss

Warranty Act

The third and fourth causes of action are based on a breach of implied warranty of merchantability and on a breach of express warranty under the Magnuson-Moss Warranty Act (MMWA), respectively.

Defendant moves for summary

judgment of the third and fourth causes of action on the grounds that they are predicated on violations of the SBA, which as previously demonstrated, does not apply to used vehicles. Defendant cites to *Daugherty v. Am. Honda Motor Co., Inc.* ("Daugherty") (2006) 144 Cal.App.4th 824, 833 and other federal cases to argue that the MMWA only provides a federal remedy for breach of warranties arising under state law. In other words, an MMWA claim falls and rises with the viability of a state warranty claim.

In opposition, Plaintiff

asserts that he may pursue his MMWA claim even if the SBA claims fail. Specifically, Plaintiff can seek SBA remedies through the MMWA, because the SBA's remedies are severable from the substantive rights. Plaintiff primarily cites to federal cases, some unpublished. Plaintiff further argues that "Plaintiff's Third Cause of Action for breach of written warranty is based on California Uniform Commercial Code §§ 2310 (d) (1), (2), and Plaintiff's Fourth Cause of Action for breach of implied warranty is based on California Uniform Commercial Code §§ 15 USC 2301 (7), 2308, 2310(d) (1), (2)." (Opp., 4:4-7.) Thus, Plaintiff can pursue MMWA claims based on such state law claims.

In reply, Defendant argues

that Plaintiff's cited authorities are not binding on this Court.

The Court finds that there

is a split of federal authority on the issue of whether an MMWA claim must be based on a viable state law claim. (See *Walsh v. Ford Motor Co.* (D.C. Cir. 1986) 807 F.2d 1000, 1012 [an MMWA claim must be based on state law]; cf. *Romo v. FFG Ins. Co.* (C.D. Cal. 2005) 3997 F.Supp.2d 1237, 1239 [upholding an independent MMWA claim under federal law].) The Court notes that federal cases, whether published or unpublished, represent only persuasive authority. (*Metalclad Corp. v. Ventana Environmental Organizational Partnership* (2003) 109 Cal.App.4th 1705, 1714-1715.)

The Court decides to follow

California authority, which states that an underlying violation of a state warranty law is required to support an MMWA claim. (See *Orichian v. BMW of North America* (2014) 226 Cal.App.4th 1322, 1330 [recognizing a violation of the MMWA claim based on a violation of California UCC]; see also *Daugherty*, *supra*, 144 Cal.App.4th at p. 833

["[The MMWA] authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. [The MMWA] 'calls for the application of state written and implied warranty law, not the creation of additional federal law,' except in specific instances in which it expressly prescribes a regulating rule."].)

To the extent that Plaintiff attempts to premise his MMWA on a Uniform Commercial Code (UCC) claim, contrary to Plaintiff's representations in the opposition, there are no UCC claims in the Complaint. The third and fourth causes of action only cite to the MMWA. Neither has Plaintiff sought to amend the Complaint to add a UCC claim or any other viable claim.

Accordingly, the Court finds that Defendant has met its burden and Plaintiff has failed to establish that a triable issue of material fact exists as to the second and third causes of action.

Requested Continuance

In the opposition, Plaintiff requests a continuance on grounds that Plaintiff has been deprived of the opportunity to depose Defendant's Person Most Qualified (PMQ). The Court is not persuaded from the opposition that information from a PMQ deposition would change the outcome of this Motion. Further, the Court notes that this hearing was continued, on the Court's own motion, from May 21, 2026 to today's date. (5/21/26 Minute Order.) No supplemental declaration has been filed regarding the status of the PMQ deposition, and no ex parte application to continue the Motion has been filed.

Conclusion

Based on the foregoing,
Defendant's Motion for Summary Judgment is granted.